

# Local Administration Act, 1971

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Local Administration Act, 2028

Date of Royal Seal and Publication

2028.04.20

Amending Acts

1. Judicial Administration Reform Act, 2031 2031.04.18
2. Black Marketing and Some Other Social Offences and Punishment Act, 2032 2032.05.20
3. Local Administration (First Amendment) Act, 2033 2033.04.28
4. Local Administration (Second Amendment) Act, 2037 2037.06.02
5. Speech and Publication Freedom Act, 2037 2037.04.29
6. Some Nepal Acts (Amendment) Act, 2041 2041.07.27
7. Judicial Administration Reform (Fourth Amendment) Act, 2043 2043.07.24
8. Some Nepal Acts (Amendment) Act, 2043 2043.07.24
9. Judicial Administration Act, 2048 2048.02.16
10. Local Administration (Third Amendment) Act, 2048 2048.02.21
11. Local Administration (Fourth Amendment) Act, 2058 2058.05.06

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Act No. 2 of the year 2028

An Act Made to Amend and Consolidate Laws Relating to Local Administration

Preamble: Whereas, it is desirable to amend and consolidate the laws relating to local administration in accordance with the federal system amended by the Act to Amend Some Nepal Acts, 2075. added by the Second Amendment. and to maintain peace and order,

Therefore, His Majesty King Mahendra Bir Bikram Shah Deva has enacted this Act with the advice and consent of the National Panchayat. Chapter ? 1

Preliminary

1. Short Title, Extent, and Commencement: (1) This Act may be called the ?Local Administration Act, 2028?.

(2) This Act shall apply throughout Nepal omitted by the Act to Strengthen the Republic and Amend Some Nepal Laws, 2066..

(3) This Act shall come into force immediately. Amended by the Local Administration (Fifth Amendment) Ordinance, 2062 and automatically revived by the Act to Revive Provisions of Some Nepal Acts, 2063.2. Definitions: Unless the subject or context otherwise requires, in this Act, ?

(a) omitted by the Third Amendment.

added by the Fourth Amendment.(a1) omitted by the Act to Amend Some Nepal Acts, 2075

(b) ?Chief District Officer? means the Chief District Officer appointed by the Government of Nepal.

added by the Act to Amend Some Nepal Acts, 2075.(b1) ?Ministry? means a Ministry of the Government of Nepal.

added by the Act to Amend Some Nepal Laws, 2063.(c) ?Assembly? means a gathering of twenty-five or more than twenty-five persons assembled in an organized or unorganized manner in any public place for a specific purpose.

Chapter ? 2

omitted by the Act to Amend Some Nepal Acts, 2075.Division of Districts

3. omitted by the Act to Amend Some Nepal Acts, 2075.Division of Districts: (1) Nepal omitted by the Act to Strengthen the Republic and Amend Some Nepal Laws, 2066. is divided into amended by the Act to Amend Some Nepal Acts, 2075. districts as mentioned in Schedule-4 of the Constitution of Nepal omitted by the Act to Amend Some Nepal Acts, 2075..

(2) The boundaries and headquarters of each omitted by the Act to Amend Some Nepal Acts, 2075. district shall be as specified by the Government of Nepal by publishing a notice in the Nepal Gazette.

(3) The boundaries and headquarters of districts existing prior to the commencement of this Act shall continue as before unless otherwise provided by the Government of Nepal by publishing a notice in the Nepal Gazette. Chapter ? 3

repealed by the Third Amendment.District Administration

4. repealed by the Third Amendment.

repealed by the Third Amendment.4a.

repealed by the Third Amendment.4b.

repealed by the Third Amendment.4c.

repealed by the Third Amendment.4d. 5. District Administration: amended by the Act to Amend Some Nepal Acts, 2064.(1) For the purpose of conducting the general administration of the district, there shall be a District Administration Office in each district. The Government of Nepal shall appoint a Chief District Officer in each district to also serve as the chief administrative officer of that office.

The Chief District Officer shall work as a representative of the Government of Nepal subject to the prevailing law, policies, directives, and omitted by the Act to Amend Some Nepal Acts, 2075. supervision of the Government of Nepal. (2) Except for courts and offices related to defense omitted by the Third Amendment. , the district level offices as specified from time to time by the Government of Nepal by publishing a notice in

the Nepal Gazette shall function as branches of the District Administration Office. (3) The Chief District Officer shall have no control over the exercise of powers specified under prevailing Nepal law or any judicial or quasi-judicial powers exercisable by a district level office functioning as a branch of the District Administration Office under sub-section (2) or by an officer of such office. (4) The powers and duties of the Chief District Officer or other officers in relation to supervision, control, and direction over district level offices functioning as branches of the District Administration Office under sub-section (2) shall be regulated by rules made under this Act amended by the Third Amendment.. (5) The functions, duties, and powers of the Chief District Officer shall be as follows: ? (a) To maintain peace, order, and security in the district; amended by the Third Amendment.(b) To provide support to development works conducted by the Government of Nepal, omitted by the Act to Amend Some Nepal Acts, 2072 Municipalities or amended by the Act to Amend Some Nepal Acts, 2072. Rural Municipalities within the district; (c) To supervise, maintain, and repair all property of the Government of Nepal within the district, or cause it to be done; (d) omitted by the Third Amendment. (e) amended by the Third Amendment. To perform other functions as per orders or directives given from time to time by the Government of Nepal. (6) omitted by the Second Amendment. 6.

Maintenance of Peace and Security: (1) omitted by the Third Amendment The Chief District Officer shall take the following actions to prevent any act likely to cause violence or riot: ? (a) If any assembly, procession, or crowd adopts a violent or destructive tendency and there is a possibility of breach of peace from any of its acts, to cause it to be stopped by the police, and if the police are unable to control it, to go immediately to the concerned place personally or send a subordinate officer and, as far as possible, try to restore peace by persuasion, and if unsuccessful, to restore or cause to be restored peace by using such force as may be necessary and appropriate to the situation, including lathi charge, tear gas, water cannon, and aerial firing; (b) If it appears that peace cannot be maintained under clause (a) and it becomes necessary to open fire, before doing so, to clearly warn the crowd in a manner understandable to them that firing will be carried out if they do not disperse, and if even then the crowd does not disperse and it becomes necessary to fire, to give a written and signed order to fire below the knee; (c) omitted by the Third Amendment. (d) omitted by the First Amendment To give written orders to police officers as required for maintaining peace and security in the district, time permitting, and only if time does not permit, verbal orders, and if a verbal order is given, to confirm it in writing as soon as possible, but within a maximum of twenty-four hours; added by the First Amendment.(e) For the purpose of maintaining peace and security in the district, the District Police Office shall work under the direct control and direction of the Chief District Officer amended by the Third Amendment.. added by the Fourth Amendment.(1a) The Chief District Officer shall immediately inform the amended by the Act to Amend Some Nepal Acts, 2075. Ministry of the actions taken in relation to maintaining peace and security under sub-section (1), and it shall be the duty of the Chief District Officer to comply with the directives given by the amended by the Act to Amend Some Nepal Acts, 2075.

Ministry in that regard. amended by the Fourth Amendment.(2) If the Chief District Officer considers that there is or is likely to be serious unrest in any place within his jurisdiction and that it is not possible to prevent the existing breach of peace or prevent unrest by the assistance of other police alone, he may, stating the reasons and grounds therefor, request assistance from the local or nearest Armed Police or, depending on the situation, the Nepali Army. In the event of requesting such assistance from the Armed Police or the Nepali Army, the amended by the Act to Amend Some Nepal Acts, 2075. Ministry shall be informed thereof by the fastest available means within twenty-four hours. (2a) omitted by the Act to Amend Some Nepal Acts, 2075. (3) If any person is about to do any act, or any object exists or is kept at any place, and there is a possibility of a riot causing a breach of peace and security, or of causing obstruction or opposition to any person, or of adversely affecting public health, the omitted by the First Amendment. Chief District Officer may issue an

order as follows, and such order shall not be for a period exceeding two months at a time: ? (a) Prohibiting any person from doing any act; (b) Ordering the owner, manager, or head of any object or property to remove that object or property from that place, or prohibiting any act at that place. added by the Act to Amend Some Nepal Acts, 2064.(3a) If a riot or unrest occurs or there is sufficient reason that it may occur in any place, taking that situation into account, the Chief District Officer may, by specifying the area and time, issue an order prohibiting more than five persons from assembling at one place with the intention of causing riot or unrest during that area and time. Any person violating such an order may be punished by the Chief District Officer with a fine of up to five hundred rupees or imprisonment for up to one month, or both. (4) When issuing an order under sub-section (3) omitted by the First Amendment. the Chief District Officer shall send a notice in the name of the concerned person stating the reason for the order.

If the concerned person cannot be found, a notice shall be affixed in accordance with prevailing Nepal law so as not to stop the work. Any person violating such an order may be fined by the issuing officer up to fifty rupees for each offence.

amended by the First Amendment.(5) If it comes to the notice of the Chief District Officer that a dispute likely to cause a breach of peace regarding land, canal, water, or boundaries exists or is about to occur within the district, he may summon the concerned parties to his office as soon as possible, record their statements, and, if necessary, attach the concerned property and entrust it for a period of three months to the person in whose possession it is, or to a amended by the Third Amendment. Municipality or amended by the Act to Amend Some Nepal Acts, 2072. Rural Municipality, or any respectable person, and order the dissatisfied party to have the right determined by a court.

amended by the Act to Amend Some Nepal Acts, 2064.(6) Any person dissatisfied with an order or punishment made by the Chief District Officer under sub-sections (3), (3a), (4), and (5) may appeal to the concerned amended by the Act to Amend Some Nepal Acts, 2072. District Court within thirty-five days.

amended by the Fourth Amendment.(7) There shall be a Security Committee in each district as follows to assist in the work of maintaining peace, security, and order: ?

- (a) Chief District Officer ? Chairperson
- (b) Local head of the Nepali Army ? Member
- (c) Head of District Police Office ? Member
- (d) Local head of Armed Police Office ? Member

Amended by the Local Administration (Fifth Amendment) Ordinance, 2062 and automatically revived by the Act to Revive Provisions of Some Nepal Acts, 2063.(e) Head of the district office of the National Investigation Department ? added by the Act to Amend Some Nepal Acts, 2064.Member

added by the Act to Amend Some Nepal Acts, 2064.(f) Assistant Chief District Officer ? Member-Secretary

(8) omitted by the Fourth Amendment.

added by the Third Amendment.(9) At the meeting of the District Security Committee, the Chief District Officer may invite officers of other offices located in the district as required.

added by the Third Amendment.(10) The meeting of the committee under sub-section (7) may be convened by the Chief District Officer as required.

added by the Second Amendment.6a. Power to Impose Curfew: (1) If an agitation or riot occurs in any place

and there is a likelihood of a breach of peace, if necessary considering the situation, the omitted by the Third Amendment.

Chief District Officer may issue an order imposing a curfew by specifying the boundaries of such place, prohibiting any person from entering or leaving, assembling, or doing any other specified act. When issuing such a curfew order, the amended by the Third Amendment. Chief District Officer shall publicize the order for the information of the general public of the area where the curfew is imposed and its surrounding areas. (2) After an order is issued under sub-section (1), no person other than a person authorized by a secret sign from the amended by the Third Amendment. Chief District Officer shall enter or leave within the prohibited place and time. (3) Any person violating the curfew order shall be arrested by the police, and the person so arrested shall be produced immediately before the amended by the Third Amendment. Chief District Officer. The amended by the Third Amendment. Chief District Officer may, following a summary procedure deemed appropriate, punish such person with imprisonment for up to one month or a fine of up to one thousand rupees, or both, and an appeal against the order of such punishment shall lie to the High Court. (4) When issuing a curfew order, the amended by the Third Amendment. Chief District Officer may also order the police to open fire against any person or group breaking the curfew in order to bring the curfew situation under control. In such a situation, if it becomes necessary for the police to open fire, before opening fire, the police shall, depending on the situation, use lathi charge, tear gas, water cannon, or aerial firing, and if even then the person or group breaking the curfew does not disperse, a clear warning shall be given that firing will be carried out if they do not disperse. If even after such warning the person or group breaking the curfew does not disperse, the police may open fire. Provided that nothing written in this sub-section shall be deemed to prevent the amended by the Third Amendment. Chief District Officer from ordering to shoot immediately upon sight any person or group breaking the curfew and exhibiting violent tendencies. (5) omitted by the Third Amendment.

The duration of the curfew imposed by order of the Chief District Officer shall be progressively reduced by the same officer according to the situation, and once the situation normalizes, the curfew shall be completely lifted. amended by the Third Amendment.(6) After the Chief District Officer issues a curfew order, he shall immediately inform the amended by the Fourth Amendment. Ministry thereof. added by the Second Amendment.6b. Power to Declare Riot-Affected Area: (1) If, in any area, a situation arises where a procession, crowd, or organized group engages in violent or destructive acts such as looting, setting fire to houses or shops, or damaging public property, with or without weapons, and if it appears that such acts cannot be prevented by ordinary police action, the omitted by the Third Amendment. Chief District Officer may declare that area as a riot-affected area. After declaring a riot-affected area, to restore peace and order in that area, the amended by the Third Amendment. Chief District Officer may take any or all of the following actions: ? (a) Arrest without warrant suspicious persons in such area and detain them under the Public Security Act, 2046 amended by the Third Amendment.; (b) Shoot on sight any person engaged in looting, setting fire to houses or shops, damaging public property, or committing other types of violent or destructive acts in such area; (c) Prohibit any type of gathering, procession, assembly, meeting, or demonstration, or the posting or writing of propaganda materials such as posters or pamphlets in such area; (d) Arrange for the supply of essential commodities in such area and control the transport, storage, sale, and distribution of such commodities; (e) Close educational institutions and any other institutions, entertainment centers, and offices in such area; (f) Prohibit strikes in any essential service under the Essential Services Operation Act, 2014 in such area; (g) Prohibit the assembly of five or more persons in such area; (h) Impose curfew in such area; (i) Seek the assistance of the Nepali Army if necessary for the above actions. (2) If there is a suspicion that illegal arms and ammunition are kept in a riot-affected area, by order of the amended by the Third

Amendment.

Chief District Officer, police personnel of the rank of at least Police Assistant Inspector may conduct a search of the house, shop, compound, or godown of any person in such area without prior notice.

amended by the Third Amendment.(3) When declaring a riot-affected area under sub-section (1), the Chief District Officer may declare it for a maximum period of one month at a time. If it is necessary to extend that period, the Chief District Officer may, with the approval of the Government of Nepal, Ministry, extend the period for up to an additional three months.

amended by the Third Amendment.(4) The Chief District Officer shall immediately inform the amended by the Fourth Amendment. Ministry of the declaration of a riot-affected area.

(5) Any person violating clause (e) or (g) of sub-section (1) or obstructing a search under sub-section (2) may be punished by the amended by the Third Amendment. Chief District Officer, following a summary procedure deemed appropriate, with imprisonment for up to three months or a fine of up to three thousand rupees, or both, and an appeal against the order of such punishment shall lie to the amended by the Act to Amend Some Nepal Acts, 2072. District Court.

added by the Act to Amend Some Nepal Acts, 2064.6c. Not to Obstruct Public Service or Road or Damage Any House or Vehicle: (1) No person shall do or cause to be done the following acts: ?

(a) To obstruct the smooth operation of a public road specified by the Government of Nepal by publishing a notice in the Nepal Gazette by way of wheel jam or any other means;

(b) To damage, set fire to, loot government, public, or private vehicles, houses, or property, or to forcibly enter such vehicles, houses, or land, or to take possession of such vehicles, houses, or property; and

(c) To obstruct government and public bodies and educational institutions by acts such as locking them.

(2) If any person commits any act under sub-section (1), the Chief District Officer may, considering the nature of the offence, punish such person with a fine of up to ten thousand rupees or imprisonment for up to six months, or both, and may also recover the amount of loss or damage caused by him from him and impose a fine equivalent to the amount of loss or damage.

(3) While taking action under this section, the Chief District Officer shall follow the procedure under the Summary Procedure Act, 2028.

(4) Any person dissatisfied with the punishment given by the Chief District Officer under sub-section (2) may appeal to the amended by the Act to Amend Some Nepal Acts, 2072.

District Court within thirty-five days.

amended by the Third Amendment.7. Powers and Duties Relating to Police Personnel: (1) The Chief District Officer shall conduct necessary inquiries as to whether the District Police Office, Area Police Office, and Police Posts are in proper condition, and whether police personnel and officers and constables have been acting in accordance with the law, and shall take the following actions in that regard: ?

(a) Inspection of the District Police Office, Area Police Office, and Police Posts shall be mandatory at least once a year. A report thereof shall be sent to the amended by the Fourth Amendment. Ministry.

(b) Reports on the honesty, integrity, and performance of police officers shall be sent to the amended by the

Fourth Amendment. Ministry twice a year, at the end of Poush and the end of Ashadh.

(c) If it appears necessary to make arrangements for any police-related work in the district, the Chief District Officer shall submit his opinion in writing to the amended by the Fourth Amendment. Ministry.

(d) If any complaint is made that a police employee has acted contrary to law while performing his duty, necessary investigation shall be conducted, and a report with recommendations and opinion shall be submitted to the amended by the Fourth Amendment. Ministry for necessary action. 8. Powers Relating to Cases and Appeals: (1) The Chief District Officer shall have the power to initiate proceedings and decide the following cases: ?

amended by the Third Amendment.(a) Cases of simple theft involving an amount of up to five hundred rupees;

(b) Cases of pickpocketing;

(c) added by the Black Marketing and Some Other Social Offences and Punishment Act, 2032.

(d) Cases of cheating by using false weights and measures;

(e) Cases relating to killing of female animals except at places of deities traditionally established.

(2) In cases under sub-section (1) that are not of a recurring nature, the decision of the Chief District Officer sentencing a fine of up to amended by the Third Amendment. five hundred rupees shall be final, and no appeal shall lie against his decision. In cases where a fine exceeding amended by the Act to Amend Some Nepal Acts, 2072. five hundred rupees is imposed or in cases of a recurring nature, an appeal against his decision shall lie to the amended by the Act to Amend Some Nepal Acts, 2072. District Court within thirty-five days.

(3) If, in connection with complaints received by him, the Chief District Officer finds it necessary to have the property of any woman or minor kept safely, he may, with the assistance of the amended by the Third Amendment.

Municipality or amended by the Act to Amend Some Nepal Acts, 2072. Rural Municipality, cause such property to be kept safely in the custody of any respectable person of the district or a government office. (4) amended by the Judicial Administration Reform (Fourth Amendment) Act, 2043. (5) amended by the Judicial Administration Reform (Fourth Amendment) Act, 2043. (6) omitted by the Third Amendment. When the Chief District Officer conducts proceedings and decides cases under this Act or prevailing Nepal law, he shall also mention the Act under which the proceedings and decision are being made and shall conduct proceedings and decide within the time limit prescribed by prevailing Nepal law. 9. Other Functions, Duties, and Powers of the Chief District Officer: (1) The Chief District Officer may cause any person who, after consuming intoxicants, sits in a public place and talks or walks carelessly or behaves disorderly, to be arrested and detained until he is sober, and after he becomes sober, may give him an oral admonition, and if he repeats the same offence, may fine him each time up to a maximum of amended by the Fourth Amendment. one thousand rupees. amended by the Act to Amend, Consolidate, Adjust, and Repeal Some Nepal Laws, 2074.(2) If unclaimed goods are found, and upon inquiry the Chief District Officer finds that the goods belong to a person liable to pay any amount to the Government of Nepal, he shall sell as much of the goods as is required to realize the amount and deposit it into the government treasury. added by the Act to Amend, Consolidate, Adjust, and Repeal Some Nepal Laws, 2074.(2a) If the goods under sub-section (2) belong to a creditor, they shall be given to the creditor; if the goods are other than those belonging to a creditor and the

owner is found, they shall be given to the owner; and if the owner is not found, they shall be given to the person on whose premises they were found.

Provided that if any object is found in a public place, it shall be handed over to the amended by the Act to Amend Some Nepal Acts, 2072. local level.

added by the Act to Amend, Consolidate, Adjust, and Repeal Some Nepal Laws, 2074.(2b) When goods are given under sub-section (2a), if the finder is entitled to receive the goods, the value of such goods shall be determined and twenty percent thereof shall be deposited in the government account; and if the finder is not entitled to receive the goods, the person receiving the goods shall give ten percent to the finder.

(3) If any government employee forces any person to work without remuneration for government or personal household work, the Chief District Officer may initiate proceedings against him under prevailing Nepal law or send a written communication to the concerned departmental head for departmental action under the Civil Service Rules.

(4) If a Municipality or amended by the Act to Amend Some Nepal Acts, 2072. Rural Municipality reports that tigers, leopards, or other wild animals are causing trouble in any place within the district, the Chief District Officer shall have such animal killed and hand over the skin and other body parts to the concerned forest office in accordance with the directives given by the amended by the Act to Amend Some Nepal Acts, 2075. Ministry of Forests and Environment of the Government of Nepal.

(5) If any person makes an illegal profit by taking unfair advantage while selling any goods, the Chief District Officer may, considering the quantity and price of the goods bought and sold, punish the seller with a fine of up to amended by the Third Amendment. one thousand rupees or imprisonment for up to three months, or both. Any person dissatisfied with the punishment given by the Chief District Officer may appeal to the amended by the Act to Amend Some Nepal Acts, 2072. District Court within thirty-five days.

(6) The Chief District Officer shall prepare and maintain a register of public taps, wells, ponds, water spouts, rest houses, public shelters, alms houses, temples, caves, bridges, etc. within his district, and if they are about to fall into disrepair or be damaged, he shall have them repaired by the owner, heir, amended by the Third Amendment. Municipality or amended by the Act to Amend Some Nepal Acts, 2072. Rural Municipality, or the Guthi Corporation.

added by the Some Nepal Acts (Amendment) Act, 2043.9(6a) No person shall construct a house on government land amended by the Act to Amend, Consolidate, Adjust, and Repeal Some Nepal Laws, 2074. public land or community land without having established his right.

If any person constructs or attempts to construct a house on such land, the Chief District Officer may issue an order prohibiting such person from constructing the house. If the house has been constructed or is under construction, the order may also require the person to demolish and remove the house within one month. If the house is not demolished within that period, the Chief District Officer may fine the person who constructed the house up to five thousand rupees and demolish the house, and may also recover the expenses incurred in demolishing the house from the concerned person. omitted by the Act to Amend, Consolidate, Adjust, and Repeal Some Nepal Laws, 2074. amended by the Act to Amend, Consolidate, Adjust, and Repeal Some Nepal Laws, 2074.(7) If a person who has lost mental balance is left uncontrolled and at large, and it appears that such person poses a danger to any person or society, the Chief District Officer shall entrust him to his guardian or, if there is a respectable person, to such guardian or respectable person; and if there is no guardian or respectable person, he shall have him placed in the nearest hospital and arrange for medical



treatment. (8) If any person applies to the Chief District Officer for a certificate of relationship, the Chief District Officer may, after inquiry and if found correct, issue the necessary certificate upon collecting a fee of five rupees. amended by the Third Amendment.(9) Any person dissatisfied with an order for action taken by the Chief District Officer in exercise of the power under sub-sections (1) and (7) may complain to the amended by the Act to Amend Some Nepal Acts, 2072. District Court within thirty-five days of such order. added by the First Amendment.(10) Except in circumstances where religious worship traditionally practiced must be continued, if any person slaughters an animal on the day of Buddha Jayanti, Krishna Janmashtami, Maha Shivaratri, Ram Navami, or Ekadashi festivals, or at a religious site specified by the Government of Nepal by publishing a notice in the Nepal Gazette prohibiting animal slaughter, the Chief District Officer may fine him up to amended by the Third Amendment. five hundred rupees, and no appeal shall lie against such order of fine by the Chief District Officer. added by the Second Amendment.(11) amended by the Third Amendment.

Within a Municipality area, no person shall leave cattle stray on the road, and if any person leaves cattle stray on the road and the concerned amended by the Third Amendment. Municipality fails to catch such stray cattle, the Chief District Officer shall cause such cattle to be caught and sold by auction in such manner as he deems appropriate, and the proceeds from the auction shall be deposited into the amended by the Act to Amend Some Nepal Acts, 2072. Rural Municipality or Municipality fund. If no one claims the cattle at the auction, the Chief District Officer may transfer such cattle without consideration to any person other than the owner of the cattle. Explanation: For the purpose of this sub-section: ?

(1) "Cattle" means ox, buffalo, bull, horse, sheep, and goat.

(2) "Stray cattle" means cattle left on the road by the owner without a herder or any other person.

added by the Second Amendment.(12) The owner of cattle violating sub-section (11) shall, by order of the Chief District Officer, be liable to imprisonment for up to amended by the Act to Amend, Consolidate, Adjust, and Repeal Some Nepal Laws, 2074. three months or a fine of up to five thousand rupees, and an appeal against the order of such punishment shall lie to the amended by the Act to Amend Some Nepal Acts, 2072. District Court. Provided that even if the owner of stray cattle is acquitted by the appellate court, the judgment of that court shall not be deemed to adversely affect the auction or transfer of the stray cattle already made under sub-section (11). 10. repealed by the Some Nepal Acts (Amendment) Act, 2041.

added by the Some Nepal Acts (Amendment) Act, 2043.10a. Record of Public Property: (1) The District Administration Office shall prepare and maintain a record of public land, rest houses, shelters, alms houses, parks, ponds, wells, pastures, thoroughfares, etc., as shown by survey maps or by official documents such as Lal Mohar, Khadga Nishana, copper plate, stone inscription, or similar authoritative deeds, and shall provide a copy thereof to the Land Revenue Office and the amended by the Act to Amend Some Nepal Acts, 2072. Rural Municipality or Municipality Office.

(2) No person shall cultivate or authorize cultivation of the public land, rest houses,